

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, SEPTEMBER 03, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CARLOS A AGUILAR and JAMAR KEENE on behalf of themselves and others
similarly situated vs. AMCOR RIGID PLASTICS USA LLC, et al.
Case Nos. CU23-03836**

Motion for Final Approval of Class Action and PAGA Settlement

TENTATIVE RULING:

Parties to appear.

Plaintiffs CARLOS A. AGUILAR and JAMAR KEENE move for final approval of the settlement reached with Defendant AMCOR RIGID PLASTICS USA LLC. The settlement concerns a class action involving alleged wage and hour violations, unreimbursed business expenses, violation of Business and Professions Code sections 17200 et seq. and PAGA penalties.

The court has not received opposition to the motion.

In a class action the court has broad discretion to determine whether a settlement was fair and reasonable. In reviewing the fairness of a settlement due regard must be given to what is otherwise a private, consensual agreement between parties. Review for fairness is limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud, overreaching, or collusion and that the settlement as a whole is fair and reasonable to all concerned. Considering reasonableness means weighing factors such as the strength of the plaintiffs' case, the risk and expense of further litigation, the amount of settlement, the risk of maintaining class action status through trial, the experience of counsel, the presence of a governmental participant, and class members' opinions of the settlement. Fairness is presumed where a settlement is

the product of arm's-length negotiation conducted after sufficient investigation and discovery to allow intelligent decisions, counsel is experienced in similar litigation, and the percentage of objectors is small. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1389.)

This court preliminarily approved the settlement on July 24, 2025. After counsel mistakenly dismissed the wrong action, the court set aside the dismissal and ordered the pending cases consolidated and directed plaintiffs to file an amended consolidated complaint. A second amended complaint consolidating the several pending actions was filed March 3, 2026.

The class consists of 488 non-exempt employees employed by Defendant in the State of California between December 30, 2020 to January 2, 2025. The PAGA representative group includes 373 persons employed between August 30, 2022 and January 2, 2025.

The settlement of \$1,020,000 reached after arms-length mediation with mediator Todd Smith, Esq. is fair, reasonable, and not the product of fraud, overreach, or collusion

488 notices were issued with 39 returned as undeliverable. After performing a skip trace, only 2 notices were determined to be undeliverable. The settlement administrator has received no requests for exclusion, no workweek disputes and no written objections. The average class settlement payment will be at least \$1,190.57.

The PAGA resolution for \$50,000 in civil penalties with 75% paid to LWDA and 25% to aggrieved employees is reasonable.

The court finds an enhancement award to each representative plaintiff of \$5,000 is reasonable.

The costs of Simpluris, the settlement administrator, not to exceed \$9,000 are reasonable.

The court finds an award of 25% of the gross settlement for attorney's fees is appropriate. Largely the pleadings are cookie cutter. While the efforts of counsel did result in a net award to the class and aggrieved members, attention to detail lacked and it appeared on more than one occasion to the court that this case fell through the cracks. (Counsel was previously advised that these issues would be reflected in the fees award.) Additionally, the court would not award \$1,000 per hour but routinely awards \$600-675 in cases such as these in recognition of the cookie cutter nature and the significant competition in Solano County. The number of hours claimed are excessive and appear to reflect unnecessary duplicate efforts as too many attorneys touched these files (i.e. 3 attorneys with billing entries for 1 CMC).

Costs of \$28,262.73 are supported by the declarations of James Clark and Kelsey Szamet and are primarily driven by the mediation and expert expenses.

Hearing to confirm final distribution of funds, including deposit of any unclaimed funds, is set for **September 2, 2027, at 8:30 a.m.** A declaration confirming compliance, including confirmation of final disposition of the unclaimed proceeds to the State Controller, shall be filed 15 days prior to the hearing.

Plaintiff shall prepare the order after hearing and judgment incorporating Code of Civil Procedure section 664.6 which shall be approved as to form by defense counsel pursuant to Cal. Rules of Court, rule 3.1312(e) prior to submission to the court.

MIDLAND CREDIT MANAGEMENT INC. v. VIVIAN SHAW
Case No. CL25-10935

Defendant's Motion to Compel Further Responses to Discovery and Requests for Sanctions

TENTATIVE RULING:

Defendant's unopposed motion to to compel further responses to discovery from Plaintiff MIDLAND CREDIT MANAGEMENT is DENIED IN PART and GRANTED IN PART.

As to Special Interrogatories Nos 1 and 5, the motion is DENIED. As to Special Interrogatory No. 6, the motion is GRANTED.

As to Plaintiff's responses to the Request for Production of Documents, Plaintiff failed to timely respond to the discovery and waived objections. Plaintiff shall respond to the Request for Production (Set One) without objection.

As to the Requests for Admission, the motion is denied. The terminology used by Plaintiff in RFA No. 2 is objectionable and vague.

Plaintiff's amended discovery responses are due 20 days from service of notice of entry of this order.

The court declines to award sanctions as to Plaintiff's motion to compel further responses to the request for production of documents as Defendant's motion is unopposed. (See CCP § 2031.300(c) (requests for production).) As to the special interrogatories, circumstances make imposition of sanctions unjust.

JAIME O ADVIENTO v NORMA R WATSON
Case No. CL25-11340

Defendant NORMA WATSON's Motion to Set Aside Default

TENTATIVE RULING: